

ENV 821 Land Conservation Treaty - Final Draft

ELECTED CHAIR

Camila Zepeda

I. KEY DEFINITIONS & OBJECTIVES

OBJECTIVES

The objective of this Agreement is to ensure the conservation and sustainable use of all terrestrial and marine ecosystems in areas beyond national jurisdiction, for the present and in the long term, through effective implementation of the relevant provisions of the Convention and further international cooperation and coordination.

KEY DEFINITIONS

1. Area

means the ocean surface, water column, seabed, ocean floor and subsoil thereof. Include terrestrial land & vertical atmosphere column and earth's crust OR Include terrestrial land, and associated carbon-based organisms with the land OR terrestrial, inland water, and marine and coastal ecosystems.

2. Biological Diversity or Biodiversity

means the variability among living organisms from all sources, including species, genetic, and ecosystem diversity, including the complex relationships between living Inclusion of functional diversity and ecosystem services. Invasive species, defined by alien species whose introduction does or is likely to cause economic or environmental harm, will not count towards biodiversity.

a) Biodiversity will be calculated through the Shannon and Simpson Indices, which will be weighed equally.

- i) [Shannon](#): a measure of species richness and equitability.
- ii) [Simpson](#): “a measure of diversity, taking into account the number of something as well as its abundance” (Royal Geographical Society).

3. Borders, sovereignties, the sea

includes all borders and sovereignty recognised in legal bilateral and international relations, including United Nations Convention on the Law of the Sea.

4. Co-Management

A collaborative approach where IPLC and government bodies share decision-making authority and responsibilities in land management. This entails the transfer of equity

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power, authority, and resources to IPLC communities, so that each factor is shared between the government and Tribal Nations.

5. Complaint

first or initiatory pleading on the part of the plaintiff in a formal action.

6. Conservation

the management of human use of the biosphere so that it may yield the greatest sustainable benefit to present generations while maintaining its potential to meet the needs and aspirations of future generations. Zoos and artificial ecosystems may not count as ‘natural’ for the purpose of conservation. Conserved land cannot have commercial purposes unless they are ecologically neutral. Edge cases like safaris are judged to be conserved based on ecological management sustainability criteria. Commercial status is not affected by fees raised solely for the maintenance of the land. Commercial status is appealable if the commercial activity is done in a sustainable, local, or artisanal manner. Conserved areas cannot include polluting and extractive activities.

7. Dispute Settlement

refers to a peaceful agreement to settle disagreements, violations, or conflicts between parties, such as states or staff members.

8. Ecologically Destructive Technology

any technology the use of which use gives rise to severe and either widespread or long-term damage to the environment

- a. Inspired by the [definition of “ecocide”](#) put forth by the Independent Expert Panel for the Legal Definition of Ecocide
- b. Potentially could exclude this - common definition

9. Ecosystem Services

the direct and indirect benefits that ecosystems provide humans. Agroecosystems, rangelands, and forests provide suites of ecosystem services that support and sustain human livelihoods. These services are typically broken down into four categories: provisioning services, regulating services, supporting services, and cultural services.

- a. Provisioning services: the material or energy outputs from an ecosystem, including food, forage, fiber, fresh water, and other resources

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- b. Regulating services: benefits obtained through moderation or control of ecosystem processes, including regulation of local climate, air, or soil quality; carbon sequestration; flood, erosion, or disease control; and pollination
- c. Supporting services: services that maintain fundamental ecosystem processes, such as habitat for plants and wildlife, or the maintenance of genetic and biological diversity
- d. Cultural services: the non-material benefits that ecosystems provide to human societies and culture, including opportunities for recreation, tourism, aesthetic or artistic appreciation, and spirituality

10. Extractive

- a. Industries that are dependent on unsustainable use, market, or trade of natural resources, including oil, gas, minerals, and timber, are extractive if they lead to a permanent reduction in the natural capital of the ecosystem without provision for their renewal.
- b. Inspired by the [TOOLKIT AND GUIDANCE FOR PREVENTING AND MANAGING LAND AND NATURAL RESOURCES CONFLICT](#) prepared by The United Nations Interagency Framework Team for Preventive Action and the European Union

11. Force majeure

An event or effect that cannot be reasonably anticipated or controlled by the affected party

12. Free, prior, and informed consent (FPIC)

The fundamental principle in international law that all Peoples have the right to self-determination, as embodied in the Charter of the United Nations and the International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights.

- a. *Free* refers to a consent given voluntarily and without coercion, intimidation or manipulation. It also refers to a process that is self-directed by the community from whom consent is being sought, unencumbered by coercion, expectations or timelines that are externally imposed.
- b. *Prior* means that consent is sought sufficiently in advance of any authorization or commencement of activities, at the early stages of a development or investment plan, and not only when the need arises to obtain approval from the community

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- c. *Informed* refers mainly to the nature of the engagement and type of information that should be provided prior to seeking consent and also as part of the ongoing consent process.
- d. *Consent* refers to the collective decision made by the rights-holders and reached through the customary decision-making processes of the affected Indigenous Peoples or communities. Consent must be sought and granted or withheld according to the unique formal or informal political-administrative dynamic of each community. Indigenous peoples and local communities must be able to participate through their own freely chosen representatives, while ensuring the participation of youth, women, the elderly and persons with disabilities as much as possible

13. Historic Farmland

Farmland that has been under cultivation for at least one generation, defined as the average age of first childbirth for the denizens of a given sub-national jurisdiction (province, state, etc.)

14. Historic land

Land where a culture and/or people have lived on and/or used annually for more than 3 generations

15. Indigenous Peoples and Local Communities (IPLC)

- a. **Indigenous people:** Descendants of populations who inherited land prior to invasion, colonialism, or another form of control by groups or states and maintain connections with their ancestral territories. Indigenous people seek to maintain and preserve distinct social, cultural, and economic institutions.
- b. **Local community:** Refers to any groups of varying sizes at a sub-national or sub-state level that self-identify a collective relationship to a specific territory. Entities included under this definition include, inter alia, villages, towns, cities, and additional relevant stakeholders. When used in the context of the treaty, additional actors that support these communities - through economic benefits, sustainability protections, or job creation - may also be included in this category.

16. Institutions

is defined as established organizations, corporations, groups, collectives, or communities (Merriam-Webster Dictionary).

17. Mining

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means the exploration, extraction, and processing of mineral resources, whether conducted on land or in marine areas, including associated infrastructure, waste disposal, and ancillary activities. Mining activities under this Agreement shall be regulated so as to prevent or minimise environmental degradation, ensure equitable benefit-sharing, respect customary rights of local communities, and uphold the conservation, restoration, and sustainability objectives of the 30×30 framework. Where applicable, mining shall be prohibited within designated Preservation areas or other zones deemed critical for biodiversity protection under this Agreement.

18. Marine ecosystem

entails every body of salt water (mangrove, coral reef, kelp forest, estuarine, seagrass, lagoon, salt marsh, ocean, sea, etc.) and their associated living beings in the system.

19. Monitoring

entails the regular and systematic assessment of performance, allowing an understanding of where conservation status is in relation to planned commitments of the 30x30 goals, and enabling the identification of issues requiring decision making to accelerate progress (UNDG, Monitoring and Evaluation).

20. Offsets

a fee paid for failure to conserve 70% of applicable land in a nation, given to over-performing nations, subject to the weighting variable presented in the obligations and commitments section.

21. Polluting

the introduction, directly or indirectly, of any substance, energy, or contaminant into the environment (including air, water, or land) that causes or is likely to cause harm to human health, living organisms, or ecosystems, or that interferes with the legitimate uses of the environment.

22. Preservation

means the protection and maintenance of lands, waters, and ecosystems in their natural state, minimizing or precluding human disturbance, extraction, or alteration. Preservation efforts aim to safeguard biodiversity, cultural heritage, and ecological integrity over the long term, ensuring that natural processes continue undisturbed for the benefit of present and future generations.

23. Rare minerals

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means naturally occurring mineral resources that are limited in global supply and are essential for technological, industrial, or renewable-energy applications. In their periodic table order, they are: scandium, yttrium, lanthanum, cerium, praseodymium, neodymium, promethium, samarium, europium, gadolinium, terbium, dysprosium, holmium, erbium, thulium, ytterbium, and lutetium.

24. Rewilding

the process of rebuilding, following major human disturbance, a natural ecosystem by restoring natural processes and the complete or near complete food-web at all trophic levels as a self-sustaining - requiring no or minimum-intervention management - and resilient ecosystem using biota that would have been present had the disturbance not occurred.

- a. Adapted from [IUCN Rewilding Principles](#)

25. Rights-based approaches to conservation

Culturally appropriate conservation initiatives supported through the self-determination and collective agency of communities granted through the secure and inalienable collective tenure rights over their traditional lands. This approach accounts for the historical context of rights recognition and dispossession in the country in which they are enacted, and actively counter existing frameworks that hinder rights recognition by implementing reforms through inclusive processes. A rights based approach cannot violate the legal rights of any given community or individual within a given community within the jurisdiction they reside within, including both explicit rights and penumbral, or common-law derived rights.

26. Small island developing nations (SIDs)

Any state party to this treaty within the States and Associate Members recognized by the United Nations: <https://www.un.org/ohrlls/content/list-sids>

27. Technology

refers to the practical application of scientific knowledge especially in a particular area or a machine, piece of equipment, method, etc. that is created by the practical application of scientific knowledge (Merriam-Webster Dictionary)

28. Tribunal

means an independent judicial or quasi-judicial body established under this Agreement, or recognised by the Parties, to adjudicate disputes, or claims arising from the interpretation, implementation, or enforcement of this Agreement. The Tribunal shall

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operate in accordance with principles of fairness, transparency, due process, and respect for the rights of Indigenous Peoples, local communities, and Parties.

- a. Alternative:* The seat of a judge; the place where he administers justice; a judicial court: the bench of judges.

29. Unable

Nations for whom over 70% of their land area fits at least one of six criteria: urban development, suburban development, currently used industrial or manufacturing facilities, infrastructure, historic farmlands, and any other lands held in private property. Urban development is loosely defined as any area zoned for urban development, suburban development is those that are zoned mostly or exclusively for human habitations, industrial and manufacturing facilities are those that are primarily for the production of goods, infrastructure is defined as any permanent structure that aids human or societal development, and land held in private property is that held under any formal or informal land title. Historic farmland that is sustainable and carbon neutral should not detract from conservation goals nor be counted in the total land area of the country for conservation purposes. All categories cannot be established *ad hoc* for the sole purpose of preventing conservation.

30. Unwilling

Nations for whom less than 70% of their land does not meet the above six criteria (urban development, suburban development, currently used industrial or manufacturing facilities, infrastructure, historic farmlands, and any other lands held in private property)

31. Violation

Breach of right, duty, or law according to the given agreement.

32. Water borders

Defined by current international water law

Any definitions not covered in this section should be defined in the subsequent sections where they are relevant.

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OBJECTIVES

II. OBLIGATIONS AND COMMITMENTS

1. Protection of Land

- a. Nations must commit at least **40%** of their terrestrial land by 2050, with interim targets outlined below. Member states unable to reach the outlined interim targets and have a continued lack of progress may result in other countries utilizing Section IV Dispute Settlements.

Year	Land Protection (%)
2035	30%
2040	33%
2045	36%
2050	40%

- b. Biodiverse and ecologically valuable areas must be prioritized as protected areas.
- c. Protection and rewilding efforts of a nation's ecological historic lands must have free, prior, and informed consent FPIC of IPLC.
- d. Direct Conservation Transfers. Nations unable to meet the goal through protected land because of unavailability of conservable land as a result of population distribution at the time of signing (or if meeting these goals would require violation of other international norms or laws) must invest in specified conservation projects in other member states or non-member developing nations - the area of which will be attributed to the investing nation's land protection commitment.
- i. Direct conservation transfers will not be permitted where it will prevent the nation receiving the transfer from meeting their own land protection conservation commitments.
- ii. If nations are also unable to make direct conservation transfers, they may alternatively conserve more water area proportional to the percent remaining in their land protection commitments (*see* Exceptions - part 5 of this subsection). The conservation areas must be no-take marine reserves in this scenario and comply with all other requirements outlined in part 2 of this subsection.
- e. Promote rewilding efforts in nations with conservation commitments, encouraging urban and peri-urban park creation.

2. Protection of Water

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- a. At least **40%** of waters measured by surface area shall be established as “zoned, multiple-use with no take areas” where possible, by 2050 with free, prior, and informed consent (FPIC) processes and ecological representation, with interim targets outlined below. We encourage countries to commit 50% of waters when able.

Year	Water Protection (%)
2035	30%
2040	33%
2045	36%
2050	40%

- i. Applicable waters include any area under a nation's exclusive economic zone (EEZ) and inland waters.
- ii. Multiple-use areas should consider total economic value from aquatic and marine activities as well as potential for renewable energy. However, these areas should not be zoned near or upon critical fragile ecosystems, such as coral reefs.
- b. Biodiverse and ecologically valuable areas must be prioritized as protected areas and at least 30% of a country’s waters should be no-take.
 - i. Ecological value includes static ecosystem components and migratory routes for marine organisms. This can include productive ecosystems on the outer continental shelf, such as seamounts and hydrothermal vents.
- c. Illegal fishing violations shall be the penalty for boat(s) from countries that engage in this behavior. Violating countries shall pay the violated country a fine proportional to the ecological harm caused. Continued lack of change may result in other countries utilizing Section IV Dispute Settlements.
 - i. This agreement makes no comment on ongoing territorial disputes. It reaffirms that all maritime activities and enforcement under this treaty shall be conducted in accordance with international law, including the United Nations Convention on the Law of the Sea (UNCLOS).
 - ii. This agreement also does not attempt to regulate illegal fishing that happens outside of state’s conserved marine areas, which by definition must be within their EEZ. Violations outside the scope are under the jurisdiction of UNCLOS, BBNJ, and Regional Fisheries Management Organizations (RFMOs).
 - iii. The sole exception to the above is in the case of migratory marine populations which spend a preponderance of their time in protected waters, but which routinely migrate out of the protected waters. If those

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populations are caught during their regular migration outside the protected area by methods that would be considered illegal had they occurred within the protected area, the same rules apply as within the protected area. In such cases, the nation who established the protected area is allowed to litigate as if the violation had occurred within the protected area.

- iv. The penalties for violating parties are proportionate to the harm they cause. Artisanal and industrial fisheries are expected to be treated distinctly.
- d. Maintain access for artisanal fisheries and fishing communities and ecologically non-disruptive and non-extractive commercial activities limited to recreational and cultural tourism in freshwater, coastal, and marine systems (8d to override 8cii1 in cases of potential dispute).

3. Scope of Conservation Commitment

- a. Conserved lands and waters must not include unsustainable takings or permanent damage to the landscape. In addition to formally protected areas, Other Effective Area-Based Conservation Measures (OECMs) that meet ecological and governance standards may also contribute to national conservation commitments.
 - i. CBD defines an OECM as a geographically defined area, outside of a protected area, that is managed to achieve positive and sustained long-term outcomes for biodiversity conservation.
- b. Conserved lands and waters must not intrude upon IPLC lands without free, prior, and informed consent (FPIC).
- c. Adopt a rights-based approach to conservation. As articulated by international organizations, this includes the rights of Indigenous Peoples and Local Communities (IPLC) to land and resources, customary sustained use, and free, prior, and informed consent (FPIC).
- d. Any commercial or industrial activity on the conserved land must be non-extractive and non-polluting and otherwise adhere to a unified international standard.
 - i. This international standard will be immediately created by a rotating committee of nations, with a process of selection analogous to the UN Security Council.
 - ii. Activities to monitor, restore, manage, and maintain conserved lands, such as selective logging to mitigate wildfires, as well as negligible impact, non-invasive ecotourism activities are permissible under this provision.

4. Financial Commitments

- a. This convention shall establish a common pooled voluntary fund. All signatory countries shall contribute to a common pooled voluntary fund. This fund will

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support capacity-building efforts, the monitoring of conservation areas, and scientific research. Financial contributions shall follow these guiding principles:

- b. Each country's contributions shall vary according to its level of economic development, historical contribution to environmental degradation, and overall capacity.
- c. The amount of pooled contributions shall be determined by global conservation priorities and informed by each country's conservation strategies, as identified through scientific evaluations and assessment reports provided by GMAS.
- d. The land conservation treaty affirms that safeguarding the planet's ecosystems is a shared responsibility among all nations. It recognises that while this responsibility is common, it is differentiated, and that effective action requires collective will and mutual support. Accordingly, signatory countries commit to cooperating transparently, sharing knowledge and resources, and coordinating conservation efforts to address global environmental challenges in a unified and equitable manner.

5. Exceptions

- a. Small island developing nations are entitled to excess flexibility in commitments, but must adhere to the minimum core conservation percentages and human rights obligations.
- b. In the event of force majeure, nations are exempt from commitments but may not degrade, pollute, or extract from conserved lands and waters nor intrude upon IPLC.

6. Management

- a. Nations commit to enshrining IPLC Land Ownership into international law.
- b. Nations will establish a management committee to oversee protected lands and waters to ensure the continued protection of conserved areas and their biodiversity. With the following exceptions for conserved ecological historic lands:
 - i. Conserved ecological historic lands must be overseen by IPLC unless, the IPLC originally maintaining the ecological, historic lands passes jurisdiction to the management committee with FPIC.
- c. Management success is defined by the existence and success of formal, rights-based, and ecologically effective governance and management systems of protected areas.

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III. MONITORING AND INSTITUTIONS

Article 1: Global Governance Framework

1.1. Global 30×30 Council (G3C)

- a. The G3C shall operate under the Convention on Biological Diversity (CBD).
- b. The G3C shall consist of 29 members, limited to 1 representative per country (loosely based on biodiversity, biodiversity potential, and number of countries in each continent).
 - i. 4 nominees from Africa
 - ii. 5 nominees from Asia
 - iii. 3 nominees from Europe
 - iv. 5 nominees from North America
 - v. 6 nominees from Oceania
 - vi. 6 nominees from South America
- c. The Council shall provide overall guidance, ensure coherence across multilateral commitments, and oversee implementation of this framework.
- d. Nomination
 - i. The ratifying Parties may nominate one candidate each to represent their region on the G3C. They will campaign for their spot on the Council, followed by a vote by the Parties. Ranked-choice voting by the ratifying Parties in the respective continent will determine the finalized members of the Council. For instance, all ratifying Parties in Asia will be eligible to nominate one candidate each, following which, they shall vote to select 8 representatives for Asia.

1.2. Global Monitoring and Assessment Secretariat (G-MAS) (also referred to as ‘the monitoring body’)

- a. Will serve as the operational and scientific arm of the G3C
- b. Its mandate shall include:
 - i. Issuing Biennial 30×30 Monitoring Reports, prepared by scientists at G-MAS and peer-reviewed;
 1. Once finalized, it will be published publicly and shared directly with parties. On off years, the G-MAS should consult with parties who are

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behind on progress towards their goals and create brief updates. These updates should be shared with all parties;

2. Reports should track progress towards goals by region, country, and ecosystem, through collecting national reports, aggregating data, and producing their own global report and data.
 3. The body will also identify areas where more rapid action is needed.
 4. The biennial report, as well as the interim updates related to monitoring for parties behind on progress, will be completed on the following timeline:
 - a. January through March: G-MAS shall collect national reports and other sources that will be used in the report;
 - b. March through June: G-MAS shall collaborate with regional and country specific partners to access additional information;
 - c. June through November: G-MAS shall write and publish their report.
 5. During this analysis, the monitoring body will consider regional and country progress towards their stated goals; the protection status of specific ecosystems that have been identified as threatened and are important to biodiversity.
 6. The body will also act as an expert board, available by request from countries and parties, for advising on indicators, standards, and methodologies for terrestrial, freshwater, and marine systems.
- ii. Developing and maintaining the Global Biodiversity Monitoring Portal (GBMP), an open-access portal for data transparency;
 - iii. Synthesizing national and regional data into global biodiversity assessments.

1.2.1 Composition of G-MAS

- a. Membership and Structure:
 - i. The G-MAS shall consist of 18 members, with 4-year, non-renewable terms.

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- ii. Membership will be distributed with at least¹:
 1. 4 scientific experts from **developing** countries and small island nations;
 2. 4 scientific experts from **developed** countries;
 3. 4 scientific experts representing IPLCs;
 4. 6 social scientists representing women and minorities;
 - iii. These members could include but are not limited to experts from international organizations United Nations Environment Programme (UNEP), Food and Agriculture Organization (FAO), International Union for Conservation of Nature (IUCN)), regional science networks and observation networks (Global Ocean Observing System (GOOS), Group on Earth Observations Biodiversity Observation Network (GEO BON)), representatives from Reducing Emissions from Deforestation and Forest Degradation (REDD+) and International Blue Carbon Initiative.
- b. Selection and Nomination Process
- i. Parties shall nominate candidates through their regional groups under the CBD.
 - ii. Appointments shall be made by the G3C based on experience in biodiversity monitoring, technical expertise, and a commitment to transparency, accountability, and inclusivity.
- c. Participation and Decision-Making
- i. G-MAS shall operate on a consensus basis. If consensus cannot be achieved, a two-thirds majority of present members shall be required for decision-making. If less than 51 percent of the G-MAS members are present, a vote cannot move forward.

Article 2: Monitoring and Evaluation Principles

Monitoring and evaluation under this framework shall be:

- **Integrated** — encompassing terrestrial, inland water, coastal, and marine systems;
- **Inclusive** — ensuring the full and effective participation of IPLCs and local actors, and

¹ Currently, these numbers are loosely based on global population. This breakdown is subject to change based on current and future Party signatories.

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holding States accountable to ensure the protection of IPLC within their borders;

- **Science-based** — drawing upon remote sensing, field surveys, and community science;
- **Adaptive** — enabling dynamic policy adjustments in response to monitoring results;
- **Transparent** — guaranteeing public access to all national data and reports through the GBMP open-access platform.

Article 3: National and Subnational Implementation

3.1 National Focal Institutions

- a. Each Party shall designate a National 30×30 Focal Institution, within its Ministry of Environment or equivalent agency, responsible for:
 - i. Integrating the 30×30 targets into National Biodiversity Strategies and Action Plans (NBSAPs);
 - ii. Establishing national monitoring and evaluation units in coordination with G-MAS;
 - iii. Reporting to the CBD Secretariat and G-MAS using standardized digital templates;
 - iv. Coordinating with Indigenous and local communities, private sector entities, and subnational governments implementing conservation actions.
- b. Multinational coalitions may help set regional goals and create targets that can be applied across countries in their region. However, national parties must then take regional goals and targets back to their country to engage with IPLCs and tailor their strategy and action plan to their country specific contexts.

3.2. Local Implementation

- a. Local governments and IPLC institutions shall serve as the operational arms of national implementation, managing locally conserved areas, marine protected zones, and forest carbon landscapes.
- b. Their governance systems, traditional knowledge, and cultural practices will be recognized as integral parts of the institutional framework.

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Article 4: Finance and Coordination Mechanisms

A Global Conservation Financial & Technological Mechanism shall be established to align and mobilize financial flows for the implementation of 30x30 targets.

The Mechanism shall:

- a. Coordinate with country Parties to pool financial resources, as set out by the Obligations & Commitments Committee, towards the purpose of all Parties making progress to their land and marine conservation goals, as well as maintaining active stewardship of their existing conserved land and marine areas;
- b. Develop streamlined approval procedures and enhanced readiness support to ensure efficient access to the financial resources collected herein;
- c. Coordinate with G3C and G-MAS to determine the amount of sufficient funding appropriate for the latest science and targets;
- d. Take into account country-driven strategies and aim to achieve a balance between economic and environmental considerations on areas gazetted for conservation;
- e. Coordinate strategies for green financing of expanded land and marine conservation, by
 - (i) developing new instruments such as biodiversity credits, payments for ecosystem services, and green bonds, and
 - (ii) building off of existing instruments such as REDD+, TFFF, and PACM;
- f. Establish mechanisms for private sector participation, particularly in sectors that depend on or impact biodiversity, such as tourism, forestry, agriculture, and fisheries;
 - i. Encourage biodiversity-positive business models, including sustainable tourism and ecotourism ventures that generate local livelihoods while enhancing ecosystem protection;
 - ii. Facilitate coordination and best practice sharing between business models developed in different country Parties, to harness economies of scale and cultivate the advancement of conservation-related private sectors as a global collective
- g. Develop investment guidelines for private enterprises to ensure environmental integrity, IPLC consideration, and socially inclusive benefit-sharing.
- h. Facilitate public-private partnerships that contribute to conservation finance and restoration efforts while still prioritizing capacity building;

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- i. Report annually on biodiversity finance flows and gaps, including private sector contributions and investment pools, to be reviewed by the G3C and made available through the GBMP;
- j. Provide overarching guidance to the promotion and facilitation of technological development and transfer, such as monitoring of conserved areas and development of flexible structures for land and marine conservation, to support the implementation of this Agreement
- k. Support collaborative approaches to research and development, as well as dissemination of the resultant innovation, in particular for early stages of the technology cycle, between country Parties

Article 5: Global Indigenous Peoples and Local Communities (IPLC) Platform

Global IPLC Platform

- a. The Global IPLC Platform (GIPLCP) shall safeguard the rights of IPLCs.
 - i. Each State Party must ensure they have representatives on their respective GIPLCP to represent their country on the global stage.
 - ii. Terrestrial and marine conservation decisions must be filtered through the SAB to the GIPLCP before areas are given protected status.
 - iii. The GIPLCP will ensure that access to traditional land, water, cultural, and customary rights are maintained if their lands are given protection status.
- b. It shall promote durable partnerships between IPLCs and government bodies through facilitated knowledge exchange and by coordinating policy positions.

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IV. DISPUTE SETTLEMENTS

The goal of the dispute process is to be transparent, affordable, and to resolve issues in as cooperative a manner as possible. Negotiations should be the primary and preferred method of dispute settlement.

The following dispute settlement process applies in coordination with Section 3: Monitoring and Institutions.

1. In the event of a dispute between Member Parties concerning the interpretation or application of this Convention, the Parties concerned shall seek a solution by negotiation.

- (a) The dispute settlement procedure is initiated when one member State files a written complaint against another member State, detailing an alleged violation. The letter must be sent to the violators and the Global 30×30 Council. Other member States then have 30 days to second the complaint. If there is a second, the accused party has 60 days to begin the negotiation process.

2. If the parties concerned cannot reach an agreement by negotiation after X 90 days from the start of negotiations, they may jointly seek the good offices of, or request mediation by, a third party.

- (a) Additionally, if the issue has been previously mediated, but not actually resolved as agreed upon, withstanding unforeseen circumstances and with the consideration of national circumstances and capacities,

- [1] the State in violation will be gradually fined or sanctioned

- i. For the first violation there will be a fine ~~based on the~~ of 80% of the value of the damages accrued. The next violation will include a new calculation of damages accrued or a ~~15%~~ 10% increase from the original fine, whichever is less. Upon a third violation, the country may face economic sanctions in relation to the Treaty violation (e.g., illegal logging would create a trade sanction on lumber, illegal fishing would create a trade sanction on fish, etc.)

3. When ratifying, accepting, approving or acceding to this Convention, or at any time thereafter, a State may declare in writing to the Chair that for a dispute not resolved in accordance with paragraph 1 ~~or paragraph 2 above~~, it may, with the consent of all parties concerned, accept one or both of the following means of dispute settlement as compulsory:

- (a) Arbitration in accordance with the following procedure:

- (i) Both parties must express explicit consent to any binding procedures
 - (ii) In disputes between two parties, the arbitral tribunal shall consist of three members. ~~Each of the parties to the dispute shall appoint an~~ Arbitrators should be preemptively appointed before each dispute settlement by Treaty Member parties and should equate to the number of parties involved in the dispute. Arbitrators shall designate by common

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agreement [an additional](#) arbitrator who shall be the President of the tribunal and shall be chosen from G-MAS. The latter shall not be a national of one of the parties to the dispute, nor have his or her usual place of residence in the territory of one of these parties, nor be employed by any of them, nor have dealt with the case in any other capacity.

(iii) The results of the Arbitration Tribunal are binding.

(b) Submission of the dispute to the International Court of Justice or the International Tribunal for the Law of the Sea, whichever is more applicable.

4. If the parties to the dispute have not, in accordance with paragraph 3 above, accepted the same or any procedure, the dispute shall be submitted to conciliation in accordance with the following:

- a. A conciliation commission shall be created upon the request of one of the parties to the dispute.
- b. The commission shall be preemptively composed ~~of an equal number of members appointed by each party concerned and a chairman chosen jointly by the members appointed by each party~~ of [equal members from each State participating in the Treaty to support inclusivity and reduce bias in disputes](#).
- c. The commission shall render a recommendation, which the parties ~~shall consider~~ shall accept in good faith.

5. Non-[treaty](#) member parties, such as international organizations or legal persons, may bring claims against Member parties if they meet independent standing for the International Court of Justice or the International Tribunal of the Law of the Sea.

- a. Additionally, in accordance with the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), Indigenous peoples or local communities utilize all dispute mechanisms available to Member Parties against the Member State in which they reside.

6. The provisions of this Article shall apply with respect to any protocol except as otherwise provided in the protocol concerned.